

Court No. - 39

Case :- WRIT - C No. - 38533 of 2014

Petitioner :- M/S Ashoka Pulp & Paper Pvt. Ltd. Thru' Director B.B. Gupta

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Chandan Agrawal, A.N. Singh

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Heard Shri Mayank Agrawal, learned counsel for the petitioner and Shri Chandan Agrawal who has accepted notice on behalf of respondent nos. 1 and 2.

Connect with Writ Petition No. 19842 of 2013.

Learned counsel for the petitioner submits that entertaining the similar matter, Division Bench in Misc. Bench No.2484 of 2013 M/s. M.L. Agarwal Steels & Alloys Pvt. Ltd. Vs. State of U.P. & Ors. has passed interim order on 22-3-2013 to the effect that the demand of electricity duty shall remain stayed. The petitioner's case is that the petitioner unit is a new unit and it was established in 2012 and as per the notification issued by the State Government dated 21-1-2010, petitioner was entitled for exemption of electricity duty.

Following the said interim order, it is provided that till the next date of listing, the demand of electricity duty as contained in Annexure 1, shall remain stayed. However, the petitioner shall continue to pay the regular bills for consumption of electricity duty as and when due.

List in the week commencing 11th August, 2014 along with other connected matters.

Order Date :- 28.7.2014

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Court No. - 39

(Correction Application No. 250413 of 2014)

In

Case :- WRIT - C No. - 38533 of 2014

Petitioner :- M/S Ashoka Pulp & Paper Pvt. Ltd. Thru' Director B.B. Gupta

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Chandan Agrawal, A.N. Singh

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

This is an application seeking correction of the order dated 28.07.2014.

Heard learned counsel for the applicant.

It appears that due to inadvertent mistake, incorrect order was transcribed, hence, it is recalled and is being substituted by the following order.

"Connect and list with Writ Petition (C) No. 51844 of 2009.

We have heard Shri Mayank Agrawal, learned counsel for the petitioner and Shri Chandan Agrawal, who has accepted notices on behalf of respondent nos. 1 and 2.

By means of this writ petition, the petitioner has prayed for quashing the demand notice issued by the respondent No. 2, for additional security, a copy of which has been filed as annexure-1 to the writ petition.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009, **(M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others)**.

Learned counsel for the petitioners also submits that in several matters identical questions are involved.

In view of the interim order as already granted in Writ Petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

List the case along with other connected matters."

Correction application, accordingly, disposed of.

Order Date :- 4.8.2014

VKS

Court No. - 39

Case :- WRIT - C No. - 38533 of 2014

Petitioner :- M/S Ashoka Pulp & Paper Pvt. Ltd. Thru' Director
B.B. Gupta

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2
Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Chandan Agrawal, A.N. Singh

Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

The petitioner has sought to challenge the notice dated 3 June 2014, demanding the additional security.

Learned counsel for the petitioner and Sri Chandan Agrawal, learned counsel appearing for the respondents have fairly stated that the controversy stands decided against the petitioner in **Writ-C No.- 30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & 3 Others)** on 21 March 2017.

The aforesaid writ petition was dismissed as the challenge made to the provision of Clause 4.20 of the Electricity Supply Code, 2005 for demand of additional security was found to have no merit.

The writ petition is, accordingly, dismissed. Interim order, if any, stands vacated.

Order Date :- 3.10.2017

A. V. Singh

(Dilip Gupta, J.)

(Jayant Banerji, J.)